Cabinet Office

A democracy that works for everyone: British citizens overseas

Policy Statement

October 2016

Foreword

I am delighted to publish the detail of our plans to implement our manifesto commitment to introduce votes for life, scrapping the rule that bars British citizens who have lived abroad for more than 15 years from voting.

British citizens living abroad retain strong links with the United Kingdom: they may have family here, and indeed they may plan to return here in the future. Equally, there are many British citizens abroad who have fought for our country, dedicating their lives to our armed services. Their stake in our country must be respected.

This Government will not deny them the opportunity to have their say in the way their country is governed. That is why I am proud to be setting out in this document the detail of the Government's approach to implementing votes for life.

I look forward to working with the electoral and expatriate communities as we take forward these proposals.

Chris Skidmore MP
Minister for the Constitution

Policy summary

Introduction

1. The Government's manifesto sets out a commitment to "introduce votes for life, scrapping the rule that bars British citizens who have lived abroad for more than 15 years from voting". This document sets out the Government's intended policy approach to delivering this commitment.

2. While we have sought to make this document as clear and comprehensive as possible, a degree of complexity is unavoidable in a policy which needs to work for an estimated 5 million diverse British citizens overseas, as well as all those who might move overseas in the future.

Current system

3. British citizens who have previously lived in the UK and who have moved abroad and wish to vote in parliamentary elections[1] can apply to register as an overseas elector in the constituency in which they were last entered in a register of parliamentary electors (before leaving the UK) provided that that entry was in force within 15 years of making an application to register as an overseas elector.

4. Currently, anyone not previously registered is not entitled to register as an overseas elector. An exception to this is for those who were too young to register to vote when they left the UK, who are entitled to register using their parents' former registration address if they were also resident at that address.

5. The identities of overseas electors are verified in the same way as that of domestic electors (using their name, date of birth and National Insurance number, with a separate process for those unable to provide a National Insurance number). Registrations must be renewed annually.

6. There is separate provision for those serving in the armed forces, Crown servants (such as those in the diplomatic service and the overseas civil service), and employees of the British Council, together with their spouses or civil partners. The 15 year time limit does not apply to these categories of electors and they can vote in the full range of UK elections for as long as they remain qualified under the separate provisions (such as by remaining in the armed forces, for example).

[1] An overseas elector who is entitled to vote in a parliamentary election in pursuance of an overseas elector's declaration is also entitled to vote as an overseas elector in a European Parliamentary election.

Proposed system

7. The Government intends to enfranchise any British citizen[2] overseas who was previously resident or registered to vote in the UK.

8. These changes will not affect the type of election which an overseas elector can vote in. Overseas electors will remain unable to vote in local government elections, elections to the devolved legislatures and elections for police and crime commissioners. The franchise for referendums will continue to be set by Parliament on a case-by-case basis.

Application process

9. As now, an overseas applicant will make an application which includes an overseas elector's declaration (though in practice both the application and declaration are done on a single form). The declaration will contain information about the applicant's entitlement to be an overseas elector, while the application will contain more practical information needed for verification of the applicant's registration.

10. Applicants will continue to be able to make applications using the register to vote service[3] on GOV.UK, as well as by using paper forms or (in some cases) by telephone.

Identity verification

11. Before they can be registered, in common with all domestic applicants, the overseas applicant will need to have their identity verified. They will also need to satisfy the electoral registration officer (ERO) that they are eligible to be an overseas elector, either in relation to being previously registered or being previously resident. This will be verified by the ERO. Annex A lists the requirements for applications and declarations.

12. Applicants who cannot provide a National Insurance number, or who cannot be verified against existing Government records, will be asked to provide a copy (or the original, at the ERO's discretion) of their current British passport as documentary evidence. This is an additional step not included in the current system, which allows only an attestation (see below) if the applicant cannot be verified using their National Insurance number.

13. An applicant who cannot provide a verifiable National Insurance number or a UK passport can have their identity verified by another registered overseas elector using an attestation, which is a signed, written statement from another British citizen overseas who is registered to vote in the UK, swearing that – to the best of the attestor's knowledge – the applicant is who they say they are.

14. We intend to maintain the existing requirements for overseas electors' attestations, with the addition of the attestor's registration address and a requirement for the

[2] As now, only British citizens – as defined by the British Nationality Act 1981 – resident abroad and not subject to any incapacity will be entitled to register to vote as overseas electors; no other types of British nationality (for example British National (Overseas), or British subject) will be eligible.
[3] http://gov.uk/register-to-vote

attestor to confirm they are aware of the criminal penalty associated with knowingly providing false information to an ERO.

15. There is an existing limit on the number of attestations an elector can make in support of a domestic applicant (two per elector in a certain time period[4]), which is designed to put a limit on any potentially fraudulent applications. However, there is currently no limit on the number of attestations which a person can make in support of an overseas application. This is inconsistent, and so under these new proposals, there will be a limit of *any* two attestations which an elector can make in support of an application for registration within a given period. See annex C for more details on attestation requirements.

16. Applicants who cannot provide a verifiable National Insurance number, or current UK passport, or an identity attestation, will not be able to register as an overseas elector.

Address verification

17. As now, overseas electors will be entitled to register in respect of just one UK address, and the ERO will need to be satisfied of the applicant's connection with that address. This connection can be one of previous registration or residence.

18. For most applicants, their eligible address will be the address at which they were last registered to vote (likely also to be the address at which they were last resident). For most (and an increasing proportion of electors over time) this will be verified by the ERO checking previous electoral registers. If the ERO is not able to verify the applicant's connection to the address that way, the applicant will be asked to provide evidence that they were resident at that address. This can be either documentary evidence (annex B lists the acceptable forms), or an attestation, in which a qualifying elector signs to say the applicant was registered at the relevant address.

19. A very small number of applicants who are registering at their previous registration address will never have lived there. Applicants in this situation may include some service electors who registered somewhere they were never resident, and someone without a fixed address while living in the UK. If these applicants cannot be verified through a previous register check, they will instead need to provide an attestation in which an eligible elector signs to confirm that they would have been eligible to register at the relevant address.

20. Some applicants will be entitled to register at the address at which they were last resident and not registered to vote. This will include anyone who was never registered to vote while living in the UK, or, at the ERO's discretion, anyone who cannot prove their connection to the last address at which they were registered in the manner outlined above. These applicants will need to provide documentary evidence of residence, or an attestation. Applicants who cannot provide acceptable proof of their previous registration/residence will not be able to register as an overseas elector.

[4] The period of time either since the attestor was added to the register, or since the last annual publication of the register, whichever is the shortest.

21. See annex C for more detail on attestations and the different types.

Renewal of registrations

22. An overseas elector will, as now, remain registered for 12 months[5]. In the three months before their registration is due to expire, the ERO will (as now) send them two reminders to renew their registration. The sending of these reminders by EROs will be mandatory and the reminders will be able to be sent electronically.

23. All overseas electors' registrations will automatically end and their entries will be removed from the register 12 months after they have been created unless the elector makes a successful renewal declaration (requirements for which are set out in annex D), in which case the registration will be extended for a further 12 months. Providing an individual always successfully renews their declaration every year their registration can continue indefinitely. If an overseas elector does not seek to renew the registration or is unable to successfully renew they will be removed from the register and must, if they wish to vote as an overseas elector, make a fresh application.

24. When the elector completes their renewal, they will be required to confirm that they have not registered to vote somewhere else in the UK in the last 12 months, and that they remain a British citizen.

25. To increase the numbers of overseas electors who renew annually, rather than let their registration lapse until there is another election in which they can participate, we intend to simplify renewal requirements – see annex D for more information.

Costs

26. The majority of the ongoing costs brought by the Government's proposed policy will be incurred by local authorities' Electoral Registration Officers in the first instance, as it is their time and resources which are needed to process applications to register as an overseas elector and renewals of overseas registrations.

27. The level of these costs will depend entirely on the number of newly eligible electors who choose to apply to register and as such cannot be predicted in advance. The Government intends to provide funding for electoral registration officers' costs which are incurred as a result of the new policy in accordance with the new burdens doctrine. Further details will be announced in due course.

28. The policy is also likely to result in some one-off costs associated with IT system changes. Initial estimates of these cost are: ~£0.1m to change the online electoral registration service on GOV.UK to allow electors made eligible to use the service and overseas electors to renew online; and ~£0.7m to make changes to electoral management software used by Electoral Registration Officers to allow them to process applications from, and to record registrations of, electors newly made eligible, and to process renewals of registration made through the online service on GOV.UK.

[5] More specifically, they will remain registered until the end of the 12 month period beginning with the date when their entry in the register first takes effect.

29. Any increase in the size of the registered electorate will slightly increase the costs of conducting polls, and so increase the cost to the consolidated fund of polls which use the parliamentary electorate. Furthermore, we expect there to be some costs associated with communications and awareness raising campaigns targeting newly eligible electors.

Feedback

30. The Government welcomes feedback from any interested party on these proposals. Comments on the proposed policy described in this document can be sent to overseas-electors@cabinetoffice.gov.uk.

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